Attorney No. 103060

IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT - DOMESTIC RELATIONS DIVISION

IN RE THE MARRIAGE OF:	)	
JOEL THORARINSON,	)	
Petitioner/Counter-Respondent,	)	
	)	No. 2024 D 6724
and	)	
	)	Cal. 11
HEATHER KIM ATAGAN,	)	
Respondent/Counter-Petitioner.	)	

NOTICE TO PRODUCE
PURSUANT TO SUPREME COURT RULE 214

To: ***Via Email: jconniff@jacfamilylaw.com***
John A. Conniff
Law Offices of John A. Conniff
77 W. Wacker Drive, Suite 4500
Chicago, Illinois 60601

YOU ARE HEREBY requested under SUPREME COURT RULE 214, to produce the documents described in the Rider attached hereto.

The documents described herein shall be produced within twenty-eight (28) days after you receive notice of this Notice to Produce, at FITZPATRICK TARARA FAMILY LAW, LLC, 35 W. Wacker Dr., Suite 650, Chicago, Illinois 60601.

The documents described herein are currently in the possession, custody or control of the Petitioner/Counter-Respondent, JOEL THORARINSON, and all persons subject to his direction or control and are not privileged, and are relevant to the subject matter of this action or reasonably calculated to lead to discovery of admissible evidence in this action.

FITZPATRICK TARARA FAMILY LAW, LLC

FITZPATRICK TARARA FAMILY LAW, LLC
Attorneys for Respondent/Counter-Petitioner
35 E. Wacker Drive, Suite 650
Chicago, Illinois 60601
(312) 588-9773
Attorney No. 103060
notice@ftfamilylawyers.com

DEFINITIONS

As used herein, the words and phrases set out below have the meaning or meanings prescribed for them;

1. "Document" or "Documents" shall mean, without limiting the generality of its meaning, every original (and every copy of any original or copy which differs in any way from the original) of every writing or recording of every kind or description, whether handwritten, typed, drawn, sketched, printed or recorded by and physical, mechanical, electronic or electrical means whatsoever, including without limitation, books, letters, records, papers, pamphlets, brochures, circulars, advertisement, blueprints, maps, plats, surveys, drawings, sketches, graphs, charts, plans, laboratory or engineering reports, correspondence, communications, telegrams, memoranda, notes, notepads, notebooks, worksheets, reports, lists, analyses, summaries, ledgers, accounts, inventories, tax returns, financial statements, profit and loss statements, corporate books and records, cash flow statements, balance sheets, annual or other periodic reports, prospectuses, registration, solicitations, minutes, stock ledgers, stock certificates, licenses, permits, calendars, books, appointment books, journals, diaries, calendars, telephone bills and toll call records, postcards, expense reports, commission statements, itineraries, agenda, payroll records, checkbooks, cancelled checks, receipts, contracts, agreements, instruments, assignments, applications, offers, acceptances, approvals, proposals, financing statements, documents of title, appraisals, purchase orders, invoices, bills of lading, written memorials or oral communications, forecasts, photographs, photographic slides or negatives, films, filmstrips, tapes and records. If a document is in the form of computer generated or stored information, or if the information contained in a document is also contained on a computer tape or punch card, such information shall be made available by print-out or other hard copy device. If a document has been prepared in several copies, or additional copies have been made, and the copies are not identical (or by reason of subsequent modifications or a copy by addition of notations, or other modifications, are no longer identical) each non-identical copy is a separate "document."

2. Related to" or "relating to" shall mean directly or indirectly mentioning or describing, pertaining to, being connected with, or reflecting upon a stated subject matter.

3. "Identification" or "Identify" shall mean as to a document or agreement, stating:

a. The date of its creation, execution and receipt;

b. Its author or signatory;

c. Its addressee and every other recipient or person having knowledge of its

contents or whereabouts;

d. Its type or nature (e.g., letter memorandum, etc.) including its subject matter (which shall be stated with particularity);

e. The number of pages, pieces or units contained therein or forming a part thereof;

f. The name and the business and home addresses of the custodian of the document;

g. The present location of the document.

INSTRUCTIONS

In construing this request:

1. The singular shall include the plural and the plural shall include the singular.

2. A masculine, feminine or neuter pronoun shall not exclude the other genders.

3. Each request shall extend to all documents which are or have been in the possession or subject to the control of the **Petitioner**, and all persons subject to his direction or control at any time during the period of time covered by this request.

4. With respect to any documents, the production of which is objected on the ground of any claim of privilege or for any other reason, **Petitioner** shall identify the document and shall further;

a. State the nature of the claim or privilege or other ground of objection;

b. State all facts relied upon in support of the claim or privilege or other ground of objection or related thereto;

c. Identify all documents related to the claim or privilege or other ground of objection;

d. Identify all persons having knowledge or any facts related to the claim of privilege or other ground of objection;

e. Identify all events, transactions or occurrences related to the claim of privilege or other ground of objection.

RIDER

DOCUMENTS SHOULD BE PRODUCED FROM JANUARY 1, 2021, TO DATE, UNLESS OTHER SPECIFIED.

1. **YOUR PRINCIPAL BUSINESS OR INCOME-PRODUCING ACTIVITY**: If you own or operate a business as sole proprietor, a partner, or a joint venture or if you are an officer and/or stockholder in a closely-held corporation, "whether C, S or LLC", or if you derive a significant part of your earned income from a single business activity, please provide the following, where

applicable: employment contracts, partnership agreements, trust agreements, offering statements, prospectus, pre-incorporation agreements, corporate minute book, articles of incorporation, certificate of incorporation; fictitious name statements, minutes, resolutions, stock registry, stock certificates, stock/shareholder agreements; buy/sell agreements; stock redemption agreements; stock option agreements; documents evidencing your capital or other monetary contributions thereto; general ledger and journals, including but not limited to, accounts receivable, accounts payable, and cash disbursements and all other supporting journals; expense reports and vouchers; documents evidencing your receipt of any funds therefrom, whether by way of salary, draw, commission, bonus, dividend, deferred compensation, expense reimbursement, contributions to profit sharing or retirement plans; return of capital, repayment of shareholder loans, allocation of profits, or otherwise; federal and state income tax returns, financial statements, profit and loss statements, balance sheets, and net worth statements; appraisals of each entity or value of your interest therein; annual reports to stockholders, investors or partners, offers by any person or entity to purchase all or a part of said business.

2. **SALARY OR REGULAR MONTHLY COMPENSATION**: True and complete copies of your paychecks and/or pay stubs, indicating gross pay, deductions, and net pay.

3. **UNEMPLOYMENT:** If unemployed, true and complete copies of all documents, including correspondence, cover letters, applications, letters of recommendation, advertisements, and the like, relating, reflecting, or referring to what was done by you since you ceased to work to present, to obtain employment. Please provide copies of all documents relative to an unemployment compensation that you have received or that you are receiving.

4. **WORKMAN'S COMPENSATION CLAIMS:** True and complete copies of any and all documents relating to any workman's compensation claim filed on your behalf, including but not limited to the claim and/or notice filed, temporary total disability payments received, settlement proceeds, proof of and/or an accounting as to where the proceeds were spent and/or are being held.

5. **EMPLOYMENT CONTRACTS**: True and complete copies of all employment contracts and agreements existing between you and any individual or entity.

6. **PERQUISITES**: True and complete copies of all documents, records, reports, correspondence, memorandum, summaries, booklets, manuals or other writings referring or relating to all perquisites received in connection with your employment specifically including, but not limited to, additional compensation i.e. commissions, bonuses, dividends, stock options, all insurance i.e. health, life, disability; retirement benefits; automobile allowance; travel and entertainment; licenses or dues; education and training, clubs, associations and societies; marketing and advertising; office, telephone expenses and the like.

7. **BUSINESS EXPENSES**: True and complete copies of all documents, records, reports, correspondence, memorandum, writings, journals, ledgers, dairies, calendars, logs or other writings referring or relating to the payment or reimbursement of your business or personal expenses; all insurance i.e. health, life, disability; retirement benefits; automobile allowance; travel and entertainment; licenses or dues; education and training, clubs, associations and societies; marketing and advertising; office, telephone expenses and the like.

8. **PERSONAL TAX RETURNS**: True and complete copies of all federal and state

personal income tax returns filed by you individually or jointly with some other person(s), including W-2 Forms, 1099 Forms, K-1 statements, schedules, and all other documents used in the preparation of the aforesaid tax returns.

9. **PARTNERSHIP AND CORPORATE TAX RETURNS**: True and complete copies of all Federal Partnership Income Tax Returns and Federal and State Corporate Income Tax Returns for entities in which you have or had any stock ownership or partnership interest or participation at any time.

10. **ESTATE AND GIFT TAX RETURNS**: True and complete copies of all state and federal gift and inheritance tax returns filed by you individually or jointly with any other person(s) or entity pertaining to any and all property received by you through gift or inheritance.

11. **AMENDED TAX RETURNS**: True and complete copies of all amended tax returns for any income tax returns requested in this rider.

12. **BUSINESS CHECKING ACCOUNTS**: True and complete copies of all monthly bank statements and accompanying canceled checks, and check registers for all accounts maintained in connection with each business, partnership or corporation in which you have a financial interest individually or jointly with any other person(s) or entity, or which you have right of withdrawal or check-signing power (regardless of whether or not the account or accounts have been closed).

13. **PERSONAL CHECKING ACCOUNTS**: True and complete copies of all monthly bank statements and accompanying canceled checks and check registers for all accounts, with any banks or other institutions holding money or assets, foreign or domestic, whether in the nature of checking or money market funds, wholly or partly in your name individually or jointly with any other person(s) or entity, or in your name as trustee for any other person, or which you have right of withdrawal or check-signing power (regardless of whether or not the account or accounts have been closed).

14. **SAVINGS ACCOUNTS**: True and complete copies of all monthly statements or passbooks referring or relating to all savings accounts, wholly or partly in your name individually or jointly with any other person(s) or entity, or in your name as trustee for any other person, or as custodian for any minor under the Uniform Gift to Minors Act (regardless of whether or not the account or accounts have been closed).

15. **CERTIFICATES OF DEPOSIT**: True and complete copies of all documents evidencing any interest in your name individually or jointly with some other person(s) or entity in certificate(s) of deposit.

16. **BROKERAGE ACCOUNTS**: True and complete copies of all periodic statements for all brokerage or investment accounts in your name individually or jointly with some other person(s) or entity including those in your name as trustee for any other person, or over which you have or had any power or direction or control (regardless of whether or not the account or accounts have been closed). These accounts include stocks, bonds, securities, certificate of deposits, debentures, mutual funds, bills, treasury notes, federal, state and municipal obligations, cash accounts, margin accounts, option accounts, warrant accounts and commodity accounts of every kind.

17. **RETIREMENT PLANS AND DEFERRED COMPENSATION AGREEMENTS**: True and complete copies of all periodic statements, books, records, certificates, papers, summary plan descriptions, agreements, contracts or any other documents for all individual retirement account(s), profit sharing plan(s), pension plan(s), stock plans, stock option plan(s), annuity(s), deferred compensation plan(s), 401(k) plan(s), Keogh plan(s), or other retirement plan(s) of any nature or type in your name individually or jointly with some other person(s). Please provide copies of the following: complete copies of the plans with any amendments thereto; actuarial or accountant's valuation of your retirement plan interests calculated at any time.

18. **SAFETY DEPOSIT BOX(ES)**: For each safety deposit box in your name individually or jointly with any other person or entity, please provide all documents, records and reports, correspondence, billing statements or other documents evidencing your ownership, rental, or interest in each said box, and please provide an accurate list of the contents therein.

19. **COMMERCIAL PAPER:** True and complete copies of all documents evidencing any interest in your name individually or jointly with any other person(s) or entity in any and all stock commodities, options, treasury bills or bonds, municipal bonds, certificates of deposit, or any other type of commercial paper or negotiable instrument.

20. **PERSONAL FINANCIAL STATEMENTS:** True and complete copies of all personal financial statements prepared by you or on your behalf, whether or not submitted to any business, bank or other financial institution.

21. **LOAN APPLICATIONS**: True and complete copies of all loan applications prepared by you or on your behalf, either individually or jointly with any other person(s) or entity, whether or not the application was approved or funds received.

22. **LOAN DOCUMENTATION**: For each loan, secured or unsecured which is or was owed to you and/or your spouse and/or your business interests by any third person or entity, provide all documents, records, reports, correspondence, memorandum, writings, mortgages, notes, periodic loan statements, schedules, notices, or other documents evidencing said loan, the date incurred, date due and payable nature of said debt or obligation.

23. **DEBTS AND/OR OBLIGATIONS**: For each debt or obligation, secured or unsecured which is or was owed by you and/or your spouse and/or your business interests to any third person or entity, provide all documents, records, reports, correspondence, memorandum, writings, mortgages, notes, periodic loan statements, schedules, notices, or other documents evidencing said debt or obligation, the date incurred, date due and payable nature of said debt or obligation.

24. **CHARGE AND/OR OBLIGATIONS**: True and complete copies of all monthly statements and any periodic summaries for each business and personal charge card, bank card, gasoline card, department store, or major credit card account maintained by you, your spouse, any company or business in which you have an interest, or in which you have signatory authority, solely, jointly with any other person or entity, as beneficiary or fiduciary.

25. **ELECTRONIC CURRENCY ACCOUNTS:** True and complete copies of any and all documentation evidencing the use of any electronic currency, cryptocurrency or virtual money,

whether foreign or domestic use, including but not limited to Bitcoin, Dogecoin, Venmo, Bitpay, PayPal, including but not limited to transactions, monthly statements, annual summaries, bitcoin address, the private key or seed transaction information, input, amount, and output.

26. **REAL ESTATE**: True and complete copies of all documents referring to your legal, equitable or beneficial interest, wholly or partly in your name individually or jointly with any other person(s) or entity or trust, for all residential, commercial and industrial real estate, whether by purchase, sale, lease, gift, trust or inheritance These documents shall include, but are not limited to the following: real estate contracts, deeds, title reports, title insurance policies, bills of sale, closing statements, real estate tax bills, loan applications, financial statements, credit reports, mortgages, notes, amortization schedules, surveys, statements from any mortgagee indicating the outstanding loan balance, leases, operating statements showing income and expenses, appraisals or market studies and other writings relating to the title, liens or encumbrances and value.

27. **LEASE AGREEMENTS**: True and complete copies of all lease agreements for each home, apartment, condominium, industrial or commercial property which you lease or are the lessor, either individually or jointly with any person(s) or entity whether for personal or business purposes.

28. **MOTOR VEHICLES**: True and complete copies of all documents relating to all motor vehicles, airplanes, boats, motorcycles, motor homes, trailers, snow mobiles, wave runners, or any other vessel, currently owned, operated and/or leased by you individually or jointly with some other person(s) or entity(s). These documents shall include, but are not limited to the following: certificates of title; purchase documents; leases; expenditures for maintenance, upkeep, repair, storage and moving fees; insurance policies and all documents evidencing all indebtedness in connection therewith.

29. **VEHICLE INSURANCE**: True and complete copies of all insurance policy(s) maintained by you, or on your behalf, individually, jointly with any other person(s) or entity in connection with all motor vehicles, airplanes, boats, motorcycles, motor homes, trailers, snow mobiles and/or wave runners, or other recreational vehicles currently owned, operated and/or leased by you individually or jointly with some other person(s) or entity(s).

30. **LIFE INSURANCE**: True and complete copies of all whole life or term insurance policy(s) maintained by you, or on your behalf, individually, jointly or with any other person(s) or entity, or which you are named beneficiary.

31. **DISABILITY INSURANCE**: True and complete copies of all disability insurance policy(s) maintained by you, or on your behalf, individually, jointly or with any other person(s) or entity.

32. **HEALTH AND DENTAL INSURANCE**: True and complete copies of all comprehensive health/hospitalization, dental, optical and prescription insurance policy(s) whether PPO or HMO maintained by you, or on your behalf. Please provide the manual or booklet identifying the carrier and describing said coverage, premium notices, proof of payment, identification cards, claim forms, or similar documents substantiating coverage.

33. **PROPERTY, CASUALTY AND HOME-OWNERS INSURANCE:** True and complete copies of all property, casualty, commercial liability and home-owner insurance policies and

riders maintained by you individually, jointly or with any other person(s) or entity in connection with any property in which you have any ownership interest whether beneficial, legal or equitable.

34. **WILLS, TRUSTS AND CODICILS:** True and complete copies of all documents, records, reports, correspondence, writings, balance sheets, financial statements, schedules of assets and liabilities referring or relating to each estate plan, will, trust, declaration and codicil executed by you, or your spouse. Please provide copies of any will(s) and trust agreements(s), trust statements or declarations of trust in existence at any time to the present date wherein you are designated a beneficiary, grantor, trustee or party to the agreement or declaration.

35. **GIFTS, TRUST AND INHERITANCE:** True and complete copies of all documents referring or relating to any money and/or property received by you and/or your spouse through gift, trust or inheritance during the marriage.

36. **JEWELRY, ART, ANTIQUES AND PERSONAL PROPERTY OF VALUE:** Please provide a list of all jewelry, art work, art objects, antiques, valuable collections, furniture, furnishings, household goods and other personal property of value submitted for insurance purposes, copies of all appraisals and insurance policies listing the foregoing for which coverage was provided; and other documents listing and/or valuing the foregoing.

37. **APPRAISALS:** True and complete copies of all appraisals, valuations, market analysis, professional opinions or other documents, records, reports, correspondence and the like concerning the valuation or appraisal of any of real or personal property including valuable collections owned by you individually or jointly with any other person(s) or entity.

38. **AIRLINE MILES:** True and complete copies of all documents, records, reports, correspondence, memorandum, summaries or other writings referring or relating to air mileage reward program, or any other travel program.

39. **ASSETS IN POSSESSION OF ANOTHER PERSON:** True and complete copies of all documents referring or relating to any and all assets which are in the possession of another person or entity in which you have an interest or any assets which is in the name of any other person or entity to whom such interest has been transferred, assigned or hypothecated by you.

40. **CLUB MEMBERSHIPS:** True and complete copies of all documents evidencing membership to any country club, health club, supper club and/or social club, whether maintained by you, or on your behalf, including cost of membership, periodic dues, value of membership or appraisal of membership interest and transferability.

41. **PRE-NUPTIAL OR POST-NUPTIAL AGREEMENTS**: True and complete copies of all documents, records, reports, correspondence, memorandum, writings, notes, schedules, balance sheets, financial statements, drafts, or other writings relating to the preparation, negotiation or execution of any claimed Pre-Nuptial or Post-Nuptial Agreements.

42. **NON-MARITAL PROPERTY**: True and complete copies of all documents, records, reports, correspondence, memorandum, writings and the like in your possession and/or control referring to or relating to any and all non-marital property to which you claim title or an interest in.

43. **EXPERTS' REPORTS**: True and complete copies of all reports, evaluations, assessments, appraisals, test results or statements from any investigators or experts employed by or on your behalf in connection with this cause.

44. **DEMONSTRATIVE EVIDENCE**: True and complete copies of all, documents, records, reports, correspondence, memorandum, writings, notes, diaries, calendars, logs, photographs, films, audio or video tapes, titles, bank statements, canceled checks, credit card statements, invoices, bills of sale, receipts, graphs, charts, summaries or other tangible or demonstrative evidence that support your contentions that (a) you have contributed to the accumulation of marital property during the marriage or that your spouse had dissipated marital property; (b) you are the owner of non-marital property as defined in Ill. Rev. Stat. Ch. 40. Sec. 503.

45. **WITNESS STATEMENTS**: True and complete copies of all statements, writings, correspondence, notes, memorandum, photographs, movies, slides, tape recordings (audio and video) or any witnesses obtained or which you intend to produce, identify or admit into evidence during any hearing or trial in connection with this cause.

46. **PHOTOGRAPHS**: True and complete copies of all photographs, movies, slides, tape recordings (audio or video) obtained or which you intend to produce, identify or admit into evidence during any hearing or trial in connection with this cause.

47. **DIARIES, CALENDARS, JOURNALS AND LOGS**: True and complete copies of all dairies, calendars, journals and logs, and the like which reflect occurrences involving **Petitioner** and/or **Respondent** which you intend to produce, identify or admit into evidence during any hearing or trial in connection with this cause.

48. **SUBPOENAS**: True and complete copies of all documents, records, reports, correspondence, memoranda, writings, notes, summaries, ledgers, journals, diaries, calendars, logs, photographs, movies/slides/films, tape recordings, (audio and video), computer discs and the like obtained by subpoena involving **Petitioner** and/or **Respondent** and/or Third-Party Respondents in connection with this cause.

49. **JUDGMENTS**: All documents evidencing any judgments entered in favor of or against **Petitioner** which entitle the **Petitioner** to any benefits or subject **Petitioner** to any liability.

50. **LITIGATION**: With respect to any lawsuit to which you, your spouse, your business, partnership, corporation or other entity owned by you has been a party either, Plaintiff or Defendant, please provide documents sufficient to identify such lawsuit, copies of all pleadings therein and any settlement agreements or memoranda thereof.

51. **LEGAL FEES**: True and complete copies of all documents, records, reports, retainer agreements, canceled checks, money orders, certified checks, travelers checks, credit vouchers, notes, ledgers, journals, deposit slips, receipts, memorandums, correspondence and the like evidencing any attorney's fees, costs and expenses paid by you or on your behalf to any attorney(s).

52. **MONTHLY LIVING EXPENSES**: True and complete copies of all documents, records, reports, writings, correspondence, memoranda, notes, journals, ledgers, diaries, calendars,

logs, bank statements, canceled checks, check registers, bills, statements, invoices, receipts, loans and the like, relating to or demonstrating your current monthly expenses, specifically including but not limited to, mortgage, rent, taxes, utilities, insurance, food, clothing, education, transportation, medical, dental, travel, entertainment and activity expenses, and the like.

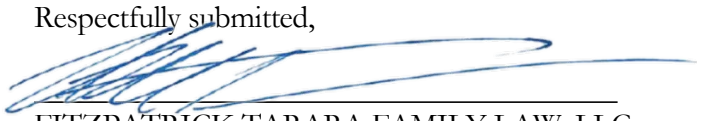
53. **PERSONAL EXPENSES PAID ON BEHALF OF A THIRD PARTY**: True and complete copies of all documents, records, reports, writings, correspondence, memoranda, notes, journals, ledgers, diaries, calendars, logs, bank statements, canceled checks, check registers, bills, statements, invoices, receipts, loans, text messages, emails, other communications, photographs and the like, relating to or demonstrating payments for expenses made on behalf of a third party not including your spouse or children, specifically including but not limited to, mortgage, rent, taxes, utilities, insurance, food, clothing, education, transportation, medical, dental, travel, entertainment and activity expenses, and the like.

54. **TRAVEL EXPENSES PAID ON BEHALF OF A THIRD PARTY**: True and complete copies of all documents, records, reports, writings, correspondence, memoranda, notes, journals, ledgers, diaries, calendars, logs, bank statements, canceled checks, check registers, bills, statements, invoices, receipts, loans and the like, relating to or demonstrating payments for travel made on behalf of a third party not including your spouse or children, specifically including but not limited to, airline flights, hotels/accommodations, meals, rental cars, tours, activities, and the like.

55. **DEMONSTRATIVE EVIDENCE REGARDING TRAVEL WITH THIRD PARTIES**: True and complete copies of all, documents, records, reports, text messages, emails, other correspondence, memorandum, writings, notes, diaries, calendars, logs, photographs, films, audio or video tapes, titles, bank statements, canceled checks, credit card statements, invoices, bills of sale, receipts, graphs, charts, summaries or other tangible or demonstrative evidence relating to any travel with third parties not including your spouse or children.

52. **PRODUCTION AFFIDAVIT**: An affidavit, pursuant to Rule 214 of the Rules of the Supreme Court of Illinois, stating whether the production is complete and in accordance with this request and, if not, what respect said production is incomplete.

Respectfully submitted,



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